

Santa Ana Regional Water Quality Control Board

October 4, 2024

Dennis Rice
LPC Arrowhead Area 1, LP
191 N. Wacker Drive, Suite 1700
Chicago, IL 60606
(drice@logisticspropco.com)

NOTICE OF APPLICABILITY FOR ORDER WQ 2014-0153-DWQ FOR LPC ARROWHEAD AREA 1, LP FACILITY ONSITE WASTEWATER TREATMENT SYSTEM AT 5702 INSTITUTION ROAD, SAN BERNARDINO, SAN BERNARDINO COUNTY (APN 026205143)

Dear Mr. Rice,

This Notice of Applicability (NOA) is to inform LPC Arrowhead Area 1, LP (Discharger/Facility) that their Facility's onsite wastewater treatment system (OWTS) is enrolled in the [State Water Resources Control Board Order WQ 2014-0153-DWQ General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems \(ca.gov\)](#) (General Order). The California Regional Water Quality Control Board, Santa Ana Region (Santa Ana Water Board) reviewed the Report of Waste Discharge (ROWD or Application) to enroll the Facility in the General Order, dated July 29, 2024, and deemed the Application complete on September 24, 2024. The Facility meets the enrollment eligibility criteria based on the information provided.

NOA FINDINGS AND REQUIREMENTS – The Discharger must comply with all applicable requirements in the General Order and any additional requirements included in this NOA, upon the effective date of enrollment in the General Order.

1. FACILITY AND DISCHARGE DESCRIPTION

The Facility is located at 5702 Institution Road, San Bernardino in San Bernardino County within the Bunker Hill B Groundwater Management Zone (groundwater basin). The Facility's OWTS collects domestic wastewater from a proposed 335,000 square foot warehouse building with office. The Facility's OWTS includes one 5,000-gallon equalization dosing tank, one moving bed bioreactor (MBBR) aerobic wastewater treatment system (MicroSeptec Enviroserve CS Series ES25C), and two 5-foot diameter by 17-foot-deep seepage pits for final effluent disposal into the subsurface of the site. The MicroSeptec CS Series ES25C system consists of a 7,500-gallon capacity tank that is divided into 5 compartments that include a primary clarifier chamber, two aeration chambers, a final clarifier chamber, and an effluent

chamber equipped with ultraviolet (UV) disinfection. The OWTS has been designed to treat an average daily flow of up to 2,500 gallons per day (gpd) and will treat up to 2,000 gallons of wastewater per day based on a 100-person occupancy at 20 gallons per person per day. Therefore, the discharge shall not exceed a monthly flow average of 2,000 gpd of treated wastewater, unless the Discharger demonstrates that the performance of the OWTS would not be impacted at higher wastewater flow rates, however, before making a material change in the character, location, or volume of discharge, the Discharger shall notify the Santa Ana Water Board's Executive Officer as required under Provision E.2.n. of the General Order and receive authorization from the Santa Ana Water Board.

2. CALIFORNIA ENVIRONMENTAL QUALITY ACT

The General Order regulates discharges from new and existing small domestic wastewater treatment systems. In accordance with the California Environmental Quality Act (CEQA) and consistent with Finding No. 32.a of the General Order, the action to enroll the Facility is categorically exempt from CEQA pursuant to California Code of Regulations, title 14, section 15301 (ongoing or existing projects), section 15302 (replacement or reconstruction of existing utility systems), and section 15303 (new construction or conversion of small structures).

3. FACILITY REQUIREMENTS

The Discharger and operator of the Facility must be familiar with the requirements contained in the General Order, this NOA, and the Monitoring and Reporting Program (MRP) in section 4 below.

The Discharger must comply with the prohibitions and specifications contained within the General Order, which are applicable to all wastewater systems. The Discharger also must comply with the following General Order specifications applicable to the Facility's specific treatment and/or disposal system.

- a. Required Technical Reports/Plans: The Discharger must submit the following plans and agreements to the Santa Ana Water Board by December 30, 2024:
 - 1) A Spill Prevention and Emergency Response Plan consistent with the requirements of General Order's Provision E.1.a.
 - 2) A Sampling and Analysis Plan consistent with the requirements of General Order's Provision E.1.b.
 - 3) A service agreement with a qualified service provider/vendor for the operation and maintenance of the Facility's OWTS consistent with the requirements of the MRP for the General Order.

Upon receipt of these plans by the Santa Ana Water Board, the Discharger must implement the plans.

- b. Prohibitions. The Discharger must comply with all prohibitions listed in section A of the General Order and all applicable requirements in the *Water Quality Control Plan for the Santa Ana River Basin* (Basin Plan)¹. Also, discharges of waste other than treated domestic wastewater are prohibited.
- c. Setback Requirements. The Discharger must ensure all discharges maintain the applicable setbacks specified in Table 3 of the General Order.
- d. Additional Applicable Requirements of the General Order. The Discharger must comply with all the requirements listed in sections B.1 (All Wastewater Systems), B.3 (Aerobic Treatment Units), and B.7 (Land Application and/or Recycled Water Systems) of the General Order.
- e. Total Nitrogen Final Effluent Limit. The monthly average total nitrogen effluent concentration shall not exceed 10 mg/L.

4. MONITORING AND REPORTING PROGRAM

The Discharger must comply with the monitoring requirements below, which are based on the MRP of the General Order.

- a. Reporting Frequency: The Discharger must submit Quarterly and Annual monitoring reports as described in sections A and B of Attachment C of the General Order. The Discharger's first quarterly report is the October – December 2024 Quarterly Report, which must be submitted to the Santa Ana Water Board by 5:00 pm on February 1, 2025. The Discharger's first annual report is the 2024 Annual Report, which must be submitted to the Santa Ana Water Board by March 1, 2025.
- b. Effluent Monitoring: The Discharger must collect a liquid grab sample at the Facility's OWTS effluent sample port for analysis. The Discharger must analyze the samples, and report the results as described in Table 1 below:

¹ Web link to the Basin Plan: [Basin Plan | Santa Ana Regional Water Quality Control Board \(ca.gov\)](https://www.sanabasin.org/BasinPlan/SantaAnaRegionalWaterQualityControlBoard/ca.gov)

Table 1: Effluent Monitoring

Constituent	Units¹	Sample Type	Sample Frequency^{2,3}	Reporting Frequency^{2,3}
Flowrate	gpd	Metered ³	Continuous	Quarterly
Biochemical Oxygen Demand	mg/L	Grab	Monthly	Quarterly
Total Nitrogen	mg/L	Grab	Monthly	Quarterly
Total Suspended Solids	mg/L	Grab	Monthly	Quarterly
Total Coliform Organisms	MPN/100 mL ⁵	Grab	Monthly	Quarterly
Turbidity	NTU ⁶	Grab/Meter	Monthly	Quarterly
Effluent Filter Condition	NA	NA	NA	Quarterly ⁴

Table 1 Notes:

- ¹ mg/L denotes milligrams per liter, and NA denotes not applicable.
- ² Monthly is defined as a calendar month. Quarterly is defined as a period of three consecutive calendar months beginning on January 1, April 1, July 1, or October 1.
- ³ The Discharger may meter or estimate the effluent flowrate based on potable water supply meter readings or other approved method.
- ⁴ The Discharger must conduct a visual inspection of the Facility's OWTS filters every quarter and clean the filters, as needed, per the manufacturer's recommendation.
- ⁵ MPN/100 mL means Most Probable Number per 100 milliliters.
- ⁶ NTU means Nephelometric Turbidity Unit.

- c. Subsurface Disposal Area: The Discharger must monitor the subsurface disposal area to determine if the Facility's OWTS evenly applies wastewater; the discharge is not saturating the disposal area; burrowing animals and/or deep-rooted plants are not present; and odors are not present. The Discharger must inspect dosing pump controllers, automatic distribution valves, etc. to maintain optimum treatment in the disposal area. The Discharger must monitor the subsurface disposal area as described in Table 2:

Table 2: Subsurface Disposal Area Monitoring

Constituent	Inspection Frequency	Reporting Frequency
Pump Controllers, Automatic Valves, etc. ¹	Quarterly	Quarterly
Nuisance Odor Condition	Quarterly	Quarterly
Saturated Soil Conditions ²	Quarterly	Quarterly
Plant Growth ³	Quarterly	Quarterly
Vectors or Animal Burrowing ⁴	Quarterly	Quarterly

Table 2 Notes:

- ¹ The Discharger must inspect all pump controllers and automatic distribution valves for proper operation as recommended by the manufacturer.
- ² The Discharger must inspect the disposal area for saturated conditions.
- ³ Shallow-rooted plants are generally desirable. The Discharger must remove deep-rooted plants such as trees, as necessary.
- ⁴ The Discharger must investigate evidence of animals burrowing and control burrowing animal populations as necessary.

5. CHANGE IN OWNERSHIP

When control or ownership of the Facility or wastewater disposal areas changes, the Discharger must notify the succeeding owner or operator of the existence of this General Order by letter, a copy of which must be immediately forwarded to the Executive Officer of the Santa Ana Water Board.

6. ENFORCEMENT

The Discharger must review and ensure this NOA completely and accurately reflects the Facility's discharge. If the Discharger violates the terms or conditions listed in this NOA or the General Order, the Santa Ana Water Board may take enforcement action, including assessment of administrative civil liability.

7. ANNUAL FEES AND SANTA ANA WATER BOARD CONTACT INFORMATION

The discharge has a threat to water quality and complexity rating of 3-C. The annual fee corresponding to the threat to water quality and complexity of 3-C can be found using the current fee schedule². Pursuant to California Code of Regulations, title 23, section 2200 (a), footnote 2, dischargers covered by waste discharge requirements for municipal and domestic discharges with permitted flows of less than 50,000 gallons per day in categories 2-B, 2-C, 3-B, and 3-C will receive a 50 percent fee discount. The fee is due and payable on an annual basis until enrollment in the General Order is terminated by the Santa Ana Water Board. If the wastewater

² Web link to Fee Schedule: [Water Quality Fees | California State Water Resources Control Board](#)

discharge ceases, the Discharger must provide written notice to enable the Santa Ana Water Board to terminate enrollment and billing.

Please review the conditions specified in this NOA and applicable sections of the General Order and notify the Santa Ana Water Board if for any reason the Discharger is not able to comply with any of the conditions specified.

Please submit all future monitoring reports and documents required by this NOA and the General Order to the Santa Ana Water Board by email. Email submittals must include a signed cover/transmittal letter with the facility name, facility contact information, and reference code **893349:LPC Arrowhead Area 1 LP**. Monitoring reports, documents, and other email submittals must be sent to SantaAna@waterboards.ca.gov. Routine email correspondence may be sent directly to individual Santa Ana Water Board staff members.

Documents that are 50 megabytes or larger should be transmitted to webmaster8@waterboards.ca.gov with a request for credentials to upload these large files or transferred to a compact disc (CD) and mailed to the Santa Ana Water Board. Santa Ana Water Board's staff may request that specific individual items such as appendices to large/complex technical reports and/or large drawings, grading plans, or maps continue to be provided in paper format. If you have specific questions about email submittal procedures or any other questions or comments, please contact Susan Beeson at (951) 782-4902, or email at susan.beeson@waterboards.ca.gov, or Christine Barks at (951) 782-7961, or email at christine.barks@waterboards.ca.gov.

Sincerely,

Jayne Joy, P.E.
Executive Officer
Santa Ana Regional Water Quality Control Board

cc: Logistics Property Company LLC – Michael Kairis (mkairis@logisticspropco.com)
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ECM/Place ID: 893349

CIWQS RM: 455774